

arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. **Defendant, as the party electing arbitration, shall initiate the arbitration before JAMS (the “Arbitration Service Provider”).** Defendant shall initiate the arbitration process in accordance with the Arbitration Agreement and any applicable rules of the Arbitration Service Provider.
3. The pending action is STAYED until an arbitration is completed pursuant to the terms and conditions of the Arbitration Agreement or further order of the Court.
4. The scope of the arbitration shall include all named defendants, including Defendant and SF Hound Lounge, Inc.
5. Lastly, the Court shall set the matter for a Case Management Conference (CMC) in 180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

10. 9:00 AM CASE NUMBER: L25-12315
CASE NAME: BRIGGSYBUNCH LLC VS. AIRCOM MECHANICAL, INC
HEARING IN RE: VERIFIED PETITION TO EXPUNGE MECH LIEN
FILED BY: BRIGGSYBUNCH LLC
TENTATIVE RULING:

Petitioner BriggsyBunch LLC (“Petitioner”) filed a Verified Petition to Expunge Mechanic’s Lien pursuant to Civil Code sections 8480 and 8484 on October 27, 2025 (the “Petition”). That Petition was set for a hearing date of January 6, 2026.

A Proof of Service of Summons was filed on December 15, 2025 reflecting service of the Summons, Petition and related papers on December 12, 2025 on respondent AirCom Mechanical, Inc. (“Respondent”).

Background

Petitioner’s Petition seeks the release of a Mechanics’ Lien recorded on the subject real property commonly known as 5444 Clayton Road, Concord, California (the “Subject Real Property”) on or about February 28, 2025 (the “Mechanics’ Lien”) because Petitioner contends that Respondent failed to bring an action to enforce the lien within 90 days after the recordation of the claim of lien.

Analysis

The owner of property or the owner of any interest in property subject to a claim of lien may

petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460. Civ. Code § 8480. Such petition is set for hearing within thirty (30) days by the Court. *Id.* at § 8486(a).

The petitioner must serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing. *Id.* at § 8486(b). Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108. *Id.*

At the hearing both (1) the petition and (2) the issue of compliance with the service and date for hearing requirements of this article are deemed controverted by the claimant. *Id.* at § 8488(a). The petitioner has the initial burden of producing evidence on those matters. *Id.* The petitioner has the burden of proof as to the issue of compliance with the service and date for hearing requirements of the statute. *Id.* This showing may be made by a verified petition pursuant to Civil Code section 8484. See Civ. Code § 8484 (“A petition for a release order shall be verified...”). The claimant has the burden of proof as to the validity of the lien. *Id.*

If judgment is in favor of the petitioner, the court shall order the property released from the claim of lien. *Id.* at § 8488(b). The prevailing party is entitled to reasonable attorney’s fees. *Id.* at § 8488(c).

As set forth in the verified Petition, Respondent recorded the Mechanics’ Lien on the Subject Real Property on February 28, 2025. Petition, ¶4 and **Exhibit A** thereto. No action to enforce the Mechanics’ Lien is pending. *Id.* at ¶11.

In addition, Petitioner has proffered the supporting declaration of its counsel, Nabeal Sunna. See Declaration of Nabeal Sunna filed October 27, 2025 (“Sunna Decl.”). Despite a diligent search, Petitioner’s counsel has not found any lawsuit filed by Respondent to foreclose on the Mechanics’ Lien. *Id.* at ¶3.

Petitioner has carried its burden to proffer evidence to establish a prima facie basis for Petitioner’s entitlement to an order, pursuant to Pursuant to Civil Code sections 8480 and 8490, to release the subject real property from the claim of lien because the claimant has not commenced an action to enforce the lien within the statutory time period.

No opposition has been filed by Respondent.

Petitioner seeks an award of reasonable attorneys’ fees in the total amount of \$2,880.00.

The Court finds that Petitioner is the prevailing parties entitled to recover attorneys’ fees, as well as its costs. The request for fees and costs is supported by Petitioner’s counsel’s declaration. See Sunna Decl., ¶¶1-4. The declaration includes a summary of the legal services rendered in the litigation of the matter and the attorney’s hourly rate (\$480.00 per hour). *Id.* at ¶4. The Court has considered the 5.0 hours of legal work described and is familiar with the scope of the pleadings prepared and filed. The Court finds that the fees total \$2,400.00 (5.0 hours multiplied by \$480.00 per hour) and that such fees were

necessary and reasonable given the nature and scope of the issues in the case. The difference (\$480) as compared to the amount requested (\$2,880) is one additional hour of estimated time to attend the hearing. See at ¶4. Given this tentative ruling and that it is unlikely that Petitioner's attorney need appear for a contested hearing, the Court will fix the attorneys' fees at \$2,400.00.

Disposition

The Court finds and orders as follows:

1. Petition is GRANTED.
2. The Subject Property, commonly known as 5444 Clayton Road, Concord, California (120-133-002) is released from the subject Mechanic's Lien of respondent AirCom Mechanical, Inc., upon the recordation of a certified copy of this decree.
3. The Mechanics Lien was recorded on **February 28, 2025** in the Contra Costa County Clerk-Recorder's Office as Instrument No. **DOC-2025-0018900**.
4. Pursuant to Civil Code section 8490, subsections (b) and (c), this order and any judgment thereon is equivalent to cancellation of the claim of lien and its removal from the record and constitutes a recordable instrument.
5. Petitioner shall recover from Respondent reasonable attorneys' fees in the amount of \$2,400.00.
6. Any recoverable costs may be sought by a timely filed memorandum of costs or otherwise in accordance with applicable law.
7. The Court shall issue the order after hearing.
8. Petitioner to prepare a final Judgment on the Petition. Such judgment shall include the legal description of the Subject Property pursuant to Civil Code section 8490, subsection (a)(4).

11. 9:00 AM CASE NUMBER: MSL19-00693

CASE NAME: MIDLAND FUNDING VS MASON

***HEARING ON MOTION IN RE: SPECIALLY APPEARING DEFENDANT DEMETRIA MASON'S NOTICE OF MOTION AND MOTION TO QUASH SUMMONS AND DISMISS ACTION WITH PREJUDICE**

FILED BY: MASON, DEMETRIA

TENTATIVE RULING:

Defendant Demetria Mason ("Defendant") filed a Motion to Dismiss and Motion to Quash Summons and Dismiss Action with Prejudice on October 16, 2025 (the "Motion to Dismiss"). The Motion to Dismiss was set for hearing on January 6, 2026. No opposition has been filed to date.